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Life Insurance Corp. Of India v. Anita Gupta

Madhya Pradesh High Court (Jun 7, 2011)

CASE NO.

First Appeal No. 658 of 2010

JUDGES

- Mr. Justice S.K. Kulshrestha
- Mr. Pramila S. Kumar
- Mr. Neerja Singh

ATTORNEY

- For the Appellant: B.K. Chansoria
- Advocate. For the Respondent: J.S. Parmar
- Advocate.

SUMMARY**Factual and Procedural Background**

The appeal arises from an order dated 22.1.2010 passed by the District Consumer Disputes Redressal Forum, Rajgarh, directing the opposite party to pay accidental benefit under insurance policies to the complainant. The respondent's husband (the insured) held three insurance policies from the appellant LIC, each for ₹ 1 lakh with accidental benefit coverage. The insured was abducted and subsequently murdered on 29.11.2006. LIC paid the sum insured but withheld the accidental benefit of ₹ 3 lakh, pending the outcome of a Sessions Court case. After the Sessions Court delivered its decision on 10.9.2008, LIC denied accidental benefit on the ground that the insured's *murder* was not accidental. The consumer forum ordered payment of the accidental benefit, which led to this appeal before the present court.

Legal Issues Presented

1. Whether the *murder* of the insured can be legally classified as an accidental death for the purpose of claiming accidental benefit under the insurance policies.

Arguments of the Parties

Appellant's Arguments

- The insured's death was a planned *murder* and therefore not an accident.
- Consequently, the accidental benefit under the insurance policies is not payable.

Respondent's Arguments

- The respondent contended that the accidental benefit was due since the insured was killed unlawfully and the payment of sum insured alone was insufficient.
- They awaited the Sessions Court decision to establish the nature of the death.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
<i>Smt. Rita Devi & Ors. v. New India Assurance Co. Ltd. & Anr.</i> , II (2000) ACC 291 (SC), IV (2000) SLT 179, II (2000) CLT 192 (SC), (2000) 5 SCC 113	Distinction between <i>murder simplicitor</i> and accidental <i>murder</i> ; a <i>murder</i> can be accidental if the killing was not the dominant intention but occurred in furtherance of another felonious act.	The court applied this principle to determine that the insured's <i>murder</i> was intentional and thus not accidental, rejecting the claim for accidental benefit.
<i>Maya Devi v. LIC of India</i> , III (2008) CPJ 120 (NC)	Reference to Halsbury's Laws of England that a <i>murder</i> is considered an accident unless the immediate cause of injury is a deliberate and wilful act of the insured himself.	The court relied on this authority to support the conclusion that the insured's deliberate act of lending money and the resulting motive for <i>murder</i> negated the classification of death as accidental.

Court's Reasoning and Analysis

The court examined the factual matrix and legal precedents to determine whether the insured's death constituted an accident under the insurance policies. The Sessions Court found that the insured had monetary dealings with the accused, who had a motive to kill him due to disputes over loaned money. The court noted that the insured's death was the result of a deliberate act motivated by a dispute rather than an unforeseen accident. Citing the Supreme Court's ruling in *Smt. Rita Devi* , the court emphasized that a *murder* is not accidental if the dominant intention was to kill the victim. The court also referred to the National Commission's decision in *Maya Devi* , which held that unless the insured's own

deliberate act caused the injury, the death could be considered accidental. Here, the insured's act of lending money and the motivation of the accused established an intentional killing (*murder simplicitor*). Therefore, the accidental benefit was not payable.

Holding and Implications

The court **allowed the appeal** and set aside the impugned order of the District Consumer Disputes Redressal Forum that had directed payment of accidental benefit. No order as to costs was made.

The decision directly affects the parties by denying the accidental benefit claim to the respondent. The court did not establish any new precedent but applied established principles distinguishing accidental death from intentional *murder* in insurance claims.

JUDGMENT

Neerja Singh, Members:

1. This appeal arises from the order dated 22.1.2010, passed in C.C. No. 128/2009 by District Consumer Disputes Redressal Forum, Rajgarh, directing the opposite party to pay the accidental benefit of the policies to the complainant.
2. The brief facts of the case are that the respondent husband, Shri Shailendra Gupta (hereinafter referred to as the insured), had three insurance policies, Nos. 351721510, 351721511 and 352331081, for ₹1 lakh each. The policies also included accidental benefit. The policies were issued by the appellant, Bharatiya Jeevan Bima Nigam (hereinafter referred to as LIC). On 29.11.2006, some miscreant abducted the insured and later killed him. The respondent states that though the LIC paid her the sum insured, the accidental benefit, amounting to ₹3 lakh for the 3 policies, was not paid. They informed her that the decision would be taken after the decision of the case before the Sessions Court. The decision of the Court, dated 10.9.2008, was sent to the LIC. On 3.11.2008, LIC informed the respondent that the accidental benefit on policy No. 352331081, was not payable, as the *murder* was not an accident.
3. The appellant LIC stated that the insured's death was a planned *murder* and was not an accident, so the accidental benefit claimed under the policies is not payable.
4. We have heard the learned Counsel for the parties and perused the documents filed on record.
5. The short point involved in this dispute is whether the *murder* of the insured could be considered an accidental death. In the judgment of the Sessions Court, filed before us, it has been held that there were monetary dealings between the *murder* accused and the insured. The insured used to lend money to the accused on interest. The Sessions Court came to the conclusion that probably a dispute arose regarding the settlement of accounts, and in the ensuing scuffle, the insured was killed.

6. In the case of [Smt. Rita Devi & Ors. v. New India Assurance Co. Ltd. & Anr.](#), **II (2000) ACC 291 (SC)=IV (2000) SLT 179=II (2000) CLT 192 (SC)=(2000) 5 SCC 113**, the Honble Supreme Court held, "The question, therefore, is, can a *murder* be an accident in any given case? There is no doubt that "*murder* ", as it is understood, in the common parlance is a felonious act where death is caused with intent and the perpetrators of that act normally have a motive against the victim for such a killing. But there are also instances where a *murder* can be an accident on a given set of facts. The difference between a "*murder* " which is not an accident and a "*murder* " which is an accident depends on the proximity of the cause of such *murder* . In our opinion, if the dominant intention of the Act of felony is to kill any particular person then such a killing is not an accidental *murder* but is a *murder* simplicitor, while if the cause of *murder* or act of *murder* was originally not intended and the same was caused in furtherance of any other felonious act then such *murder* is an accidental *murder* ."

(Emphasis supplied)

7. This view was again taken by the Honble National Commission in the case of **Maya Devi v. LIC of India**, **III (2008) CPJ 120 (NC)**, wherein they have cited Halsburys Laws of England, Vol 25, Pg 311 Para 575, 4th Edition, which stipulates that unless the immediate cause of the injury is the deliberate and wilful act of the insured himself the *murder* would be considered an accident.

8. In the instant case, the insured used to lend money to the accused on interest. Whether the insured went to meet them to demand his money, or they abducted him with the intention of murdering him, by no stretch of imagination can it be said to be an accident, it was the act of the insured himself, which was the immediate cause of the injury. The accused had a motive and sufficient reason to kill him. In our considered view, it is a clear case of *murder* simplicitor.

9. In view of the aforesaid, the appeal is allowed, and the impugned order of the District Forum is set aside. No order as to costs.

Appeal allowed.